



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

September 02, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21141
(FIRST REVISION)

EXPIRATION DATE: 2026-07-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Pollution Control Inc.
North Little Rock, AR
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain waste energetic substances classed as Division 1.1D, subject to the packaging and special provisions prescribed herein, for the purpose of disposal only. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.320 in that the marking requirement for EX numbers is waived, and 49 CFR § 173.56(b) in that a new explosive need not be examined, classed, and approved.
5. BASIS: This special permit is based on the application of Pollution Control Inc. dated August 1, 2022, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Substances, explosive, n.o.s.*	1.1D	UN0475	N/A

*Limited to touch waste streams identified in paragraph 7.b.(2) of this special permit. The most appropriate technical name shall be used for the specific waste stream being transported in each outer packaging.

7. SAFETY CONTROL MEASURES:

a. PACKAGING:

(1) Inner Packaging: Bags, static-resistant plastic, each containing touch waste (rags, gloves, swabs, etc.) and waste energetics with concentrations and wetting as noted in the table in paragraph 7.b.(2) of this special permit.

(2) Outer Packaging: UN 1H2 steel drum with removable head, or UN 1H2 plastic drum with removable head, each containing not more than 55 gallons or 400 kilograms of waste. For waste streams PCI-2021-03 and PCI-2021-04, the gross mass of the outer packaging shall not exceed 200 kilograms.

b. OPERATIONAL CONTROLS:

(1) Transport is limited to one-way transport of waste explosive substances or articles to a disposal facility.

(2) The waste streams authorized by this special permit are limited to those identified by Drawing Numbers PCI-2021-01 (listed Secondary Explosives, including smokeless powders, black powder, ammonium nitrate emulsions, rocket propellants, plastic bonded explosives, and various secondary explosives), PCI-2021-02 (listed High Explosives), PCI-2021-03 (listed primary explosives), and PCI-2021-04 (listed pyrotechnic explosives). For each waste stream, the maximum concentration of explosives by mass and minimum required concentration of wetting agent by mass are indicated in the table below.

Waste Stream	Maximum NEW (by mass)	Minimum wetting (without floor sweepings)	Minimum wetting (with floor sweepings)
PCI-2021-01	50%	N/A	15%
PCI-2021-02	25%	15-30% (various)	50%
PCI-2021-03	3%	20%	50%
PCI-2021-04	3%	20%	50%

(3) For mixtures of ingredients from multiple waste streams in the same inner packaging, the most restrictive maximum explosive concentrations and minimum concentration of wetting requirements from the table must be used.

(4) No material may be offered for transportation under this special permit if they are unstable, condemned, or deteriorated. If a chlorate is present in any waste, that waste may not be mixed in the same outer package with any of the following, or other touch wastes that have been in contact with the following:

(i) An ammonium salt, including a substituted ammonium or quaternary ammonium salt

(ii) An acidic substance, including a salt of a weak base and a strong acid.

(5) Shipments covered by this special permit do not require EX Approval Numbers to be marked on the outer packaging or incorporated with the proper shipping description.

(6) Pollution Control Inc. must maintain a record of each waste stream transported under this permit at their main offices in North Little Rock, AR and made available to the Office of Hazardous Materials Safety upon request. The record shall include the date and loading/unloading locations, and for each packaging, identify the percentage by mass for each explosive component and diluent used to dilute the explosive.

(7) Not more than fifty (50) outer packagings may be transported per motor vehicles or freight container.

(8) No other hazardous materials shall be carried in the same carrying body as materials offered for transportation under this special permit.

(9) This special permit only authorizes carriage of waste substances between the packaging location and a disposal location authorized to handle hazardous materials within Class 1.

8. SPECIAL PROVISIONS:

- a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).
- b. A current copy of this special permit must be maintained at each facility where the package is offered for transportation and the Pollution Control Inc. main office in North Little Rock, AR.
- c. All packages shipped under this special permit must be marked “DOT-SP 21141” per the requirements of 49 CFR § 172.301(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Kenny Herzog/NICKS